

I526E 申请基础文件清单- Salary

A. Earned Income (Salary)

劳动收入（薪资）

1. Income certification letter from employer company

雇主公司的收入证明信

- Include some basic company background and employment information (position, dates, etc).包含一些基本的公司背景和雇佣信息（职位、任职日期等）。
- Make clear whether the stated income is gross pre-tax or net after-tax (or tax-exempt).明确说明所列收入是税前总额还是税后净额（或免税收入）。
- Should break down income by years.应按年度详细列出收入。
- Use specific amounts; do not use words like "approximately," "about," "average," etc.使用具体金额；请勿使用“大约”、“大概”、“平均”等词汇。
- Use company letterhead.使用公司抬头纸。
- Include name, position, and contact information of certifier.包含证明人的姓名、职位和联系信息。

- Certifier's ID, company name card, or some other document (e.g. social insurance) to show that the certifier is a real person and working for the company.

证明人的身份证、公司名片或其他文件（例如社保记录），以表明证明人是真实存在且在该公司工作的。

- Certifier should be a current employee of the company and of relevant position/department (e.g. management, human resources, etc.)

证明人应为公司现职员工，且属于相关职位/部门（如管理层、人力资源部等）。

- Never mention any salaries or payments that cannot be supported by proof of payroll or paystubs. USCIS will not consider a letter with salary information that is not supported by payroll documents and will ask how the author can know what the salary was without supporting payroll records.

绝不要提及任何无法由工资单或薪资证明支持的薪资或款项。如果没有工资文件的支持，USCIS 将不予考虑带有薪资信息的证明信，并会询问在没有支持性工资记录的情况下，开具人如何能够知道薪资是多少。

2. Supporting income documentation (provide as much as possible from below list) 收入支持文件（请尽可能多地提供以下列表中的文件）

- Tax records for relevant years (very important)
相关年份的税务记录（非常重要）
- Payroll/paystub records (very important)
工资单/薪资流水记录（非常重要）

- Social insurance records (very important)
社保记录（非常重要）
- Labor contract (helpful)
劳动合同（有帮助）
- Employee business card (helpful)
- 员工名片（有帮助）
- Professional qualification certification/license (if applicable)
专业资格证书/执照（如适用）

3. Accumulation, saving, and sustainment of income

收入的积累、储蓄和维持

- If the salary income is not the directly immediate source of funds, then in most cases, it is sufficient to just show the earning of income as corroborated by the above-listed documents. However, in certain situations USCIS will ask for bank statements to corroborate further that the claimed income was actually accumulated and saved over the claimed period of time and that it was actually used on the claimed transaction (e.g. used for real estate purchase).
如果薪资收入不是直接的最终资金来源，那么在大多数情况下，只需展示上述文件证实的收入所得即可。然而，在某些情况下，USCIS 会要求提供银行流水，以进一步证实所声称的收入确实在声称的时间段内得以积累和储蓄，并且确实用于了声称的交易（例如用于购买房产）。
- The following situations require such bank statements:
以下情况需要此类银行流水：
 - Pure salary source of funds (where the salary income is the directly immediate source of funds) always requires full monthly bank statements for the entire claimed period of income accumulation.
纯薪资资金来源（即薪资收入是直接的最终资金来源）总是需要提供整个声称收入积累期间的完整逐月银行流水。
 - If the income is from the recent 5-7 years, USCIS may require bank statements corroborating the accumulation and usage.
如果收入来自最近 5-7 年，USCIS 可能要求提供证实其积累和使用的银行流水。
 - If there is suspicion of misrepresentation, fraud, or inconsistencies, USCIS will require bank statements corroborating the accumulation and usage.
如果怀疑存在虚假陈述、欺诈或不一致之处，USCIS 将要求提供证实其积累和使用的银行流水。
 - If the case involves any security risk (as per Section A above), USCIS will require bank statements corroborating the accumulation and usage.
如果案件涉及任何安全风险（如上述 A 部分所述），USCIS 将要求提供证实其积累和使用的银行流水。
- If bank statements are required:

如果需要银行流水：

- Must include full monthly bank statements, without gaps, for the entire claimed period of income accumulation.
必须包含整个声称收入积累期间的完整逐月银行流水，不得有间断。
- If the bank statements show commingling of salary money with other substantial or large incoming funds from other sources, USCIS will require documentation to explain the source and purpose of those transactions.
如果银行流水显示薪资资金与来自其他渠道的其他大额或巨额入账资金存在混同，USCIS 将要求提供文件以解释这些交易的来源和目的。
 - Commingling includes substantial other money coming into the account during the savings period.
混同包括在储蓄期间有大额其他资金进入账户。
 - Commingling also includes substantial balances that pre-existed immediately before the savings period.
混同还包括在储蓄期刚开始前就已经存在的大额余额。
 - An audit may sometimes be helpful in these situations.
在这些情况下，审计报告有时会有所帮助。

4. Employer Company Documents

雇主公司文件

- Business license 营业执照
- Enterprise report 企业报告
- Company website or brochures 公司网站或宣传册
- If company no longer exists, then documentation of termination
如果公司不复存在，则提供注销/终止证明文件

5. Personal declaration if insufficient or no evidence is available

证据不足或无法获得证据时的个人声明

- Include detailed breakdown of income, source, and other relevant information.
包含收入、来源及其他相关信息的详细说明。
- Provide a reasonable explanation of why the required evidence cannot be obtained.
针对为什么无法获得所需证据提供合理的解释。
- Provide a summary of what actions were taken to attempt to obtain the evidence and why they were unsuccessful.
概述为尝试获取证据采取了哪些行动，以及为什么这些行动没有成功。
- Include copy of the applicable legal tax retention or bank retention period.
包含适用的法定税务保存期限或银行记录保存期限的副本。
- Declaration may not be used for pure salary cases where the salary is the directly immediate source of funds.
- 对于薪资作为直接最终资金来源的纯薪资案件，不得使用此类声明。

6. Potential Problems to Avoid

应避免的潜在问题

- Living expenses: If the saved salary to purchase/investment ratio is too high (75%+), then also need to further additional income to account for regular living expenses at the same time.
生活费：如果储蓄薪资用于购买/投资的比例过高（75%以上），则同时还需要提供其他额外收入以抵消同期的日常开销。
- Employee-shareholder: If the employee or employee's immediate family member is a shareholder or officer of the company, then must also submit source of funds of any startup capital used to originally invest in the company.
员工持股：如果该员工或其直系亲属是公司的股东或高管，则还必须提交最初投资该公司时所使用的任何启动资金的来源。